

arising from a promise to make a distribution from an estate or trust after death. Because Brian seeks to enforce Barbara’s alleged promise, not a promise by their father, section 366.3 appears inapplicable.

Section 339 provides for a two-year limitations period for a cause of action based upon a breach of an *oral* contract and a four-year limitations period for a cause of action based upon breach of a *written* contract. Here, the FAC does *not* specifically allege whether the cause of action is based upon an oral or written agreement. Rather, the FAC alleges an agreement generally with written and oral acknowledgements, assurances and/or confirmations. (See FAC, ¶¶ 2, 22, 63.)

Notably, despite quoting the demurrer statute, Defendant did not demur on the ground that “it cannot be ascertained from the pleading whether the contract is written, is oral, or is implied by conduct.” (Code Civ. Proc., § 430.10(g). See also, Mov. Pts. & Auth. at p. 5, line 24-p.6, line 1 [quoting Code Civ. Proc., § 430.10].)

If based on an oral contract, the claim *may* be time-barred. The FAC alleges that Defendant “unequivocally promised that, *upon their father’s death*, she would immediately transfer to Brian the funds she received so he could use them for his sons’ benefit.” (FAC, ¶ 1, emphasis supplied.) The FAC alleges that their father died on or about 4/4/23. (FAC, ¶ 23.) Plaintiff did not file this action until 8/8/25 – over 2 years after their father’s death. Notably, however, an acknowledgement may toll the limitations period. (See, e.g., Code Civ. Proc., § 360. See also, *Dawadi v. Adhikari* (2026) 120 Cal.App.5th 558, 562 [discussing distinction between acknowledgements made before and after the statute of limitations has run].)

Here, the FAC does not establish on its face that the claim is time-barred as argued by Defendant.

Uncertainty: Finally, Defendant fails to show how the first cause of action is uncertain. A party attacking a pleading on “uncertainty” grounds must specify how and why the pleading is uncertain, and where that uncertainty can be found in the challenged pleading. (*Fenton v. Groveland*

Community Services Dept. (1982) 135 Cal.App.3d 797, 809 (disapproved on other grounds in *Katzberg v. Regents of the University of California* (2002) 29 Cal.4th 300).) Here, the demur merely concludes, without showing, that the first cause of action is uncertain.

The demurrer to the first cause of action for breach of contract is therefore OVERRULED.

2nd C/A (conversion)

Defendant argues that insufficient facts are alleged in the FAC to support the second cause of action for conversion and that the claim is also uncertain.

Conversion is the wrongful exercise of dominion over the personal property of another. (*Mendoza v. Rast Produce Co., Inc.* (2006) 140 Cal.App.4th 1395, 1403-1404; *Los Angeles Fed. Credit Union v. Madatyan* (2012) 209 Cal.App.4th 1383, 1387 [wrongful interference with insurance proceeds].) The elements for a claim of conversion are: “(1) the plaintiff's ownership or right to possession of the property; (2) the defendant's conversion by a wrongful act or disposition of property right; and (3) damages.” (*IIG Wireless, Inc. v. Yi* (2018) 22 Cal.App.5th 630, 650.)

The FAC sufficiently alleges each element of conversion. It alleges Brian owned, possessed, or had the immediate and exclusive right to possess the personal property located at the Property, including Father’s diaries, Mother’s Japanese cookware, a Tiffany lamp, Dansk bowls and dishes, Asian rugs, silverware, and other household items. (FAC ¶ 40.) It further alleges Barbara expressly told Brian that she did not want any of the personal property and that Brian could have all of it, and that Brian accepted that offer. (FAC ¶ 41.) The FAC alleges Barbara thereafter intentionally and without Brian’s consent took possession of, removed, and/or destroyed the property, thereby exercising dominion and control over it in a manner inconsistent with Brian’s rights. (FAC ¶¶ 42–45.) Finally, the FAC alleges Brian suffered damages, including the fair market value of the converted property and consequential damages. (FAC ¶ 46.)